

SiyaBusa ERP

Referral Partner Agreement

Legal Agreement

Masaphokati Technologies (Pty) Ltd

Document Version: 1.0

Effective Date: January 2026

Department: Legal & Compliance

Classification: Confidential

WE RULE. WE GOVERN. WE EMPOWER.

Referral Partner Agreement

LEGAL AGREEMENT

This is a legally binding agreement between Masaphokati Technologies (Pty) Ltd and the Referral Partner. Please read carefully and seek independent legal advice before signing.

REFERRAL PARTNER AGREEMENT

This Referral Partner Agreement ("Agreement") is entered into as of the date of last signature below ("Effective Date")

BETWEEN:

MASAPHOKATI TECHNOLOGIES (PTY) LTD

Registration Number: [Company Reg No.]

A company duly incorporated in accordance with the laws of the Republic of South Africa

Physical Address: [Registered Address]

Email: partners@siyabusa.co.za

Website: www.siyabusa.co.za

(hereinafter referred to as "**the Company**")

AND:

THE REFERRAL PARTNER

Full Name / Company Name: _____

ID Number / Registration Number: _____

Physical Address: _____

Email Address: _____

Contact Number: _____

(hereinafter referred to as "**the Partner**")

(Collectively referred to as "**the Parties**" and individually as a "**Party**")

RECITALS

WHEREAS:

A. The Company is in the business of developing and providing enterprise resource planning software solutions under the brand name "SiyaBusa ERP" and related services;

B. The Partner has access to business networks and relationships that may benefit from the Company's products and services;

C. The Parties wish to enter into a formal arrangement whereby the Partner will introduce potential clients to the Company in exchange for commission payments as set out herein;

D. The Parties wish to record the terms and conditions of their referral partnership arrangement.

NOW THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context otherwise requires:

"Business Day" means any day other than a Saturday, Sunday, or public holiday in the Republic of South Africa;

"Client" means any individual, company, or other legal entity that enters into a contract with the Company for Products and/or Services as a result of a Qualified Referral;

"Commission" means the payment due to the Partner as calculated in accordance with Clause 4;

"Confidential Information" means all information disclosed by one Party to the other, whether orally, in writing, or by any other means, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure, including but not limited to business plans, client lists, pricing information, technical data, and trade secrets;

"Contract Value" means the total monetary value of payments made by a Client to the Company under a contract for Products and/or Services, excluding VAT and any third-party costs passed through at cost;

"Intellectual Property" means all patents, trademarks, service marks, logos, trade names, domain names, copyrights, designs, know-how, trade secrets, and all other intellectual property rights, whether registered or unregistered;

"Products" means the SiyaBusa ERP software platform and any related software products offered by the Company;

"Qualified Referral" means a referral that meets all the criteria set out in Clause 3;

"Services" means implementation, customization, training, support, consulting, and any other services offered by the Company in connection with the Products;

"Territory" means the Republic of South Africa and any other territories as agreed in writing by the Parties.

1.2 Interpretation

1.2.1 Words importing the singular include the plural and vice versa;

1.2.2 Words importing any gender include the other genders;

1.2.3 A reference to a person includes a natural person, company, close corporation, partnership, trust, or any other legal entity;

1.2.4 Headings are for convenience only and shall not affect the interpretation of this Agreement;

1.2.5 Any reference to "days" shall mean calendar days unless otherwise specified;

1.2.6 The words "include" and "including" shall be construed without limitation.

2. APPOINTMENT AND SCOPE

2.1 Appointment

The Company hereby appoints the Partner as a non-exclusive referral partner to introduce potential clients to the Company for the Products and Services, and the Partner accepts such appointment on the terms and conditions set out in this Agreement.

2.2 Non-Exclusive Arrangement

2.2.1 This appointment is on a non-exclusive basis. The Company reserves the right to appoint other referral partners, agents, or representatives and to market and sell the Products and Services directly.

2.2.2 The Partner is not precluded from entering into similar arrangements with other parties, provided such arrangements do not conflict with the Partner's obligations under this Agreement.

2.3 No Authority to Bind

2.3.1 The Partner is an independent contractor and not an employee, agent, joint venturer, or legal representative of the Company.

2.3.2 The Partner has no authority to:

- (a) Enter into any contract or commitment on behalf of the Company;
- (b) Make any representations, warranties, or guarantees on behalf of the Company;
- (c) Accept payments on behalf of the Company;
- (d) Modify the Company's standard terms and conditions or pricing;
- (e) Create any obligation or liability on behalf of the Company.

2.3.3 Any contract for Products and/or Services shall be entered into directly between the Company and the Client.

3. QUALIFIED REFERRALS

3.1 Requirements for a Qualified Referral

For a referral to be considered a Qualified Referral and eligible for Commission, ALL of the following requirements must be met:

3.1.1 **New Client:** The referred party must be a new potential client who:

- (a) Has not previously purchased Products or Services from the Company;
- (b) Is not currently in active discussions with the Company;
- (c) Has not been referred by another partner within the preceding twelve (12) months;
- (d) Is not a current or former employee of the Company.

3.1.2 **Valid Registration:** The Partner must register the referral through the Company's designated referral registration process, which may include:

- (a) Submitting the Referral Registration Form (Schedule A); or
- (b) Registering via the partner portal at www.siyabusa.co.za/partners; or
- (c) Sending written notification to partners@siyabusa.co.za.

3.1.3 **Required Information:** The referral registration must include:

- (a) Full legal name of the potential client;
- (b) Contact person name and designation;

- (c) Email address and telephone number;
- (d) Brief description of the potential client's business;
- (e) Nature of the opportunity or Products/Services of interest.

3.1.4 **Acceptance:** The Company must confirm acceptance of the referral in writing within ten (10) Business Days of registration.

3.2 Referral Validity Period

3.2.1 A Qualified Referral shall remain valid for a period of twelve (12) months from the date of acceptance by the Company ("Validity Period").

3.2.2 If the referred party does not enter into a contract with the Company within the Validity Period, the referral shall expire, and the Partner shall not be entitled to any Commission in respect of any subsequent contract with that party.

3.2.3 The Validity Period may be extended by mutual written agreement of the Parties.

3.3 Referral Disputes

3.3.1 In the event of a dispute regarding referral attribution, the Company's records and determination shall be final, provided the Company acts reasonably and in good faith.

3.3.2 The Company shall maintain accurate records of all referral registrations and shall make such records available to the Partner upon reasonable request.

4. COMMISSION STRUCTURE AND PAYMENT

4.1 Commission Rate

Subject to the terms of this Agreement, the Company shall pay the Partner a commission of **TEN PERCENT (10%)** of the Contract Value for each Qualified Referral that results in a signed contract.

4.2 Commission Calculation

4.2.1 Commission shall be calculated on the actual payments received by the Company from the Client, excluding:

- (a) Value Added Tax (VAT);
- (b) Third-party license fees passed through at cost;
- (c) Reimbursable expenses;

- (d) Refunds or credits issued to the Client.

4.2.2 Examples of Commission Calculation:

Contract Type	Contract Value	Commission (10%)
Monthly Subscription	R15,000/month	R1,500/month
Annual Contract	R180,000/year	R18,000/year
Implementation Fee	R100,000 (once-off)	R10,000 (once-off)
Project Engagement	R500,000 total	R50,000 total

4.3 Payment Terms

4.3.1 Commission shall become due and payable within thirty (30) days after the Company receives payment from the Client.

4.3.2 The Company shall provide the Partner with a monthly statement reflecting:

- (a) Payments received from referred Clients;
- (b) Commission earned;
- (c) Any deductions or adjustments.

4.3.3 Payment shall be made by electronic funds transfer to the bank account nominated by the Partner in writing.

4.3.4 The Partner shall be responsible for any bank charges on the Partner's account.

4.4 Duration of Commission Entitlement

4.4.1 **Lifetime Commission:** Subject to Clauses 4.4.2 and 4.4.3, the Partner shall be entitled to Commission for as long as the referred Client continues to make payments to the Company under the initial contract or any renewal, extension, or new contract for Products and/or Services.

4.4.2 Commission entitlement shall terminate upon:

- (a) Termination of this Agreement for cause under Clause 10.2;
- (b) The Client ceasing to be a client of the Company;
- (c) The Partner's material breach of this Agreement.

4.4.3 In the event of termination of this Agreement without cause under Clause 10.3:

- (a) The Partner shall continue to receive Commission for existing referred Clients for a period of twenty-four (24) months following termination; or
- (b) Until the referred Client ceases to be a client of the Company, whichever occurs first.

4.5 Taxes

4.5.1 All Commission amounts are exclusive of VAT.

4.5.2 If the Partner is registered for VAT, the Partner shall issue a valid tax invoice to the Company, and the Company shall pay VAT in addition to the Commission.

4.5.3 The Partner shall be solely responsible for any income tax, provisional tax, or other taxes arising from Commission payments.

4.5.4 The Company shall not be required to withhold any taxes from Commission payments unless required by law.

5. PARTNER OBLIGATIONS

5.1 General Obligations

The Partner undertakes to:

5.1.1 Act in good faith and in the best interests of the Company when performing activities under this Agreement;

5.1.2 Conduct all activities in a professional, ethical, and lawful manner;

5.1.3 Not make any false, misleading, or deceptive representations about the Company, its Products, or Services;

5.1.4 Comply with all applicable laws, regulations, and industry codes of conduct;

5.1.5 Promptly notify the Company of any complaint, dispute, or legal action relating to a referral;

5.1.6 Maintain accurate and complete records of all referral activities.

5.2 Prohibited Activities

The Partner shall not:

5.2.1 Engage in any activity that could damage the reputation or goodwill of the Company;

5.2.2 Offer or pay any bribe, kickback, or improper inducement to any person in connection with referrals;

5.2.3 Make any commitments or promises to potential clients regarding pricing, features, delivery timelines, or service levels without prior written approval from the Company;

5.2.4 Engage in any form of spam, unsolicited communication, or aggressive marketing tactics;

5.2.5 Use the Company's Intellectual Property except as expressly authorized under Clause 8;

5.2.6 Assign or sublicense any rights under this Agreement without prior written consent.

6. COMPANY OBLIGATIONS

6.1 The Company undertakes to:

6.1.1 Process all referral registrations within ten (10) Business Days;

6.1.2 Notify the Partner of the acceptance or rejection of a referral with reasons for rejection;

6.1.3 Pay Commission in accordance with Clause 4;

6.1.4 Provide the Partner with reasonable marketing materials and information about the Products and Services;

6.1.5 Notify the Partner within a reasonable time of any material changes to Products, Services, or pricing;

6.1.6 Act in good faith in all dealings with the Partner.

6.2 The Company reserves the right to:

6.2.1 Accept or reject any referral at its sole discretion;

6.2.2 Negotiate and finalize contracts with Clients on such terms as it deems appropriate;

6.2.3 Modify its Products, Services, and pricing from time to time;

6.2.4 Terminate any Client contract in accordance with its terms.

7. CONFIDENTIALITY

7.1 Confidentiality Obligations

7.1.1 Each Party agrees to keep confidential all Confidential Information received from the other Party and to use such information only for the purposes of this Agreement.

7.1.2 Each Party shall protect the Confidential Information of the other Party with at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care.

7.1.3 Confidential Information may only be disclosed to employees, contractors, or advisors who:

- (a) Have a need to know for purposes of this Agreement; and
- (b) Are bound by confidentiality obligations no less restrictive than those in this Agreement.

7.2 Exceptions

Confidential Information does not include information that:

7.2.1 Is or becomes publicly available through no fault of the receiving Party;

7.2.2 Was rightfully known to the receiving Party prior to disclosure;

7.2.3 Is rightfully obtained from a third party without breach of any confidentiality obligation;

7.2.4 Is independently developed by the receiving Party without use of the Confidential Information.

7.3 Required Disclosure

If a Party is required by law, court order, or regulatory authority to disclose Confidential Information, such Party shall:

7.3.1 Provide prompt written notice to the other Party (to the extent legally permitted);

7.3.2 Cooperate with the other Party's efforts to obtain protective measures;

7.3.3 Disclose only the minimum information required.

7.4 Duration

The obligations under this Clause 7 shall survive termination of this Agreement for a period of five (5) years.

8. INTELLECTUAL PROPERTY

8.1 Ownership

8.1.1 All Intellectual Property of the Company, including the "SiyaBusa" and "Masaphokati" names, logos, trademarks, and all associated branding, shall remain the sole property of the Company.

8.1.2 Nothing in this Agreement grants the Partner any ownership rights in the Company's Intellectual Property.

8.2 Limited License

8.2.1 Subject to the terms of this Agreement, the Company grants the Partner a non-exclusive, non-transferable, revocable license to use the Company's approved marketing materials and logos solely for the purpose of performing referral activities under this Agreement.

8.2.2 The Partner shall:

- (a) Use only materials and logos provided or approved by the Company;
- (b) Follow the Company's brand guidelines;
- (c) Not modify, adapt, or create derivative works from the Company's Intellectual Property;
- (d) Not register or attempt to register any trademark, domain name, or business name that is confusingly similar to the Company's Intellectual Property.

8.2.3 The license granted under this Clause 8.2 shall terminate immediately upon termination of this Agreement.

9. DATA PROTECTION AND POPIA COMPLIANCE

9.1 Compliance with POPIA

9.1.1 Both Parties shall comply with the Protection of Personal Information Act 4 of 2013 ("POPIA") and any other applicable data protection legislation.

9.1.2 For the purposes of POPIA:

- (a) Each Party shall be an independent responsible party in respect of personal information it collects and processes in the performance of this Agreement;
- (b) Where a Party processes personal information on behalf of the other Party, that Party shall be an operator and shall comply with the provisions applicable to operators under POPIA.

9.2 Personal Information of Referred Parties

9.2.1 The Partner warrants that it has obtained all necessary consents and has provided all required notices to referred parties before sharing their personal information with the Company.

9.2.2 The Partner shall only share personal information that is adequate, relevant, and not excessive for the purpose of the referral.

9.3 Security Measures

Each Party shall implement appropriate technical and organizational measures to protect personal information against unauthorized access, loss, destruction, or damage.

9.4 Data Breach Notification

In the event of a data breach affecting personal information shared under this Agreement, the affected Party shall:

9.4.1 Notify the other Party within seventy-two (72) hours of becoming aware of the breach;

9.4.2 Cooperate with any investigation and remediation efforts;

9.4.3 Comply with any notification requirements under POPIA.

10. TERM AND TERMINATION

10.1 Term

This Agreement shall commence on the Effective Date and shall continue for an initial period of twenty-four (24) months ("Initial Term"), whereafter it shall automatically renew for successive twelve (12) month periods ("Renewal Terms") unless terminated in accordance with this Clause 10.

10.2 Termination for Cause

Either Party may terminate this Agreement immediately upon written notice if the other Party:

10.2.1 Commits a material breach of this Agreement that is not remedied within thirty (30) days of written notice specifying the breach;

10.2.2 Becomes insolvent, enters into liquidation (whether voluntary or compulsory), business rescue, or any similar proceedings;

10.2.3 Ceases or threatens to cease carrying on business;

10.2.4 Is convicted of fraud, corruption, or any criminal offense involving dishonesty.

10.3 Termination Without Cause

Either Party may terminate this Agreement without cause by giving ninety (90) days' written notice to the other Party.

10.4 Effect of Termination

Upon termination of this Agreement:

10.4.1 The Partner shall immediately cease all referral activities and use of the Company's Intellectual Property;

10.4.2 Each Party shall return or destroy all Confidential Information of the other Party;

10.4.3 Commission entitlement shall be determined in accordance with Clause 4.4;

10.4.4 All provisions that by their nature should survive termination shall survive, including Clauses 7, 8, 9, 11, 12, and 14.

11. LIMITATION OF LIABILITY

11.1 Exclusion of Certain Damages

To the maximum extent permitted by law, neither Party shall be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including but not limited to loss of profits, loss of business, loss of goodwill, or loss of data, arising out of or in connection with this Agreement, even if advised of the possibility of such damages.

11.2 Cap on Liability

Subject to Clause 11.3, each Party's total aggregate liability to the other Party under or in connection with this Agreement shall not exceed the total Commission paid or payable under this Agreement in the twelve (12) months preceding the event giving rise to the claim.

11.3 Exceptions

The limitations in Clauses 11.1 and 11.2 shall not apply to:

11.3.1 Liability for death or personal injury caused by negligence;

11.3.2 Liability for fraud or fraudulent misrepresentation;

11.3.3 Breach of confidentiality obligations under Clause 7;

11.3.4 Indemnification obligations under Clause 12;

11.3.5 Any liability that cannot be limited or excluded by law.

12. INDEMNIFICATION

12.1 Partner Indemnification

The Partner shall indemnify, defend, and hold harmless the Company and its directors, officers, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable legal fees) arising out of or in connection with:

12.1.1 The Partner's breach of this Agreement;

12.1.2 The Partner's negligence or willful misconduct;

12.1.3 Any misrepresentation made by the Partner to a referred party;

12.1.4 The Partner's violation of any applicable law or regulation;

12.1.5 Any claim by a third party arising from the Partner's activities under this Agreement.

12.2 Company Indemnification

The Company shall indemnify, defend, and hold harmless the Partner from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable legal fees) arising out of or in connection with:

12.2.1 The Company's breach of this Agreement;

12.2.2 Any claim that the Company's Products or Services infringe the intellectual property rights of a third party;

12.2.3 The Company's negligence or willful misconduct.

12.3 Indemnification Procedure

12.3.1 The indemnified Party shall promptly notify the indemnifying Party of any claim;

12.3.2 The indemnifying Party shall have the right to control the defense and settlement of any claim;

12.3.3 The indemnified Party shall cooperate reasonably with the defense.

13. DISPUTE RESOLUTION

13.1 Negotiation

In the event of any dispute arising out of or in connection with this Agreement, the Parties shall first attempt to resolve the dispute through good faith negotiation.

13.2 Mediation

If the dispute is not resolved within thirty (30) days of written notice of the dispute, either Party may refer the dispute to mediation under the rules of the Arbitration Foundation of Southern Africa ("AFSA") or such other mediation body as the Parties may agree.

13.3 Arbitration

If the dispute is not resolved within thirty (30) days of the commencement of mediation, either Party may refer the dispute to final and binding arbitration under the rules of AFSA. The arbitration shall:

13.3.1 Be conducted by a single arbitrator appointed by agreement or, failing agreement, by AFSA;

13.3.2 Take place in Johannesburg, South Africa;

13.3.3 Be conducted in English;

13.3.4 Result in a final and binding award.

13.4 Urgent Relief

Nothing in this Clause 13 shall prevent either Party from seeking urgent interim relief from a court of competent jurisdiction.

13.5 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the Republic of South Africa.

14. GENERAL PROVISIONS

14.1 Entire Agreement

This Agreement, together with any Schedules, constitutes the entire agreement between the Parties and supersedes all prior negotiations, representations, warranties, and agreements

relating to the subject matter hereof.

14.2 Amendment

This Agreement may only be amended by a written instrument signed by both Parties.

14.3 Waiver

No waiver of any provision of this Agreement shall be effective unless in writing and signed by the Party against whom the waiver is to be enforced. No failure or delay in exercising any right shall operate as a waiver thereof.

14.4 Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid and enforceable, or if modification is not possible, shall be severed from this Agreement, and the remaining provisions shall continue in full force and effect.

14.5 Assignment

Neither Party may assign, transfer, or sublicense any of its rights or obligations under this Agreement without the prior written consent of the other Party, except that the Company may assign this Agreement to any successor to all or substantially all of its business or assets.

14.6 Notices

All notices under this Agreement shall be in writing and shall be deemed given when:

14.6.1 Delivered personally;

14.6.2 Sent by email to the addresses specified in this Agreement (with confirmation of receipt);

14.6.3 Three (3) Business Days after being sent by registered mail.

14.7 Force Majeure

Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement to the extent such failure or delay results from circumstances beyond the Party's reasonable control, including natural disasters, acts of government, war, terrorism, labor disputes, or infrastructure failures.

14.8 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be valid and binding.

14.9 Independent Legal Advice

Each Party acknowledges that it has had the opportunity to obtain independent legal advice regarding this Agreement and that it enters into this Agreement freely and voluntarily.

15. SIGNATURE

The Parties have executed this Agreement as of the date last written below.

FOR AND ON BEHALF OF MASAPHOKATI TECHNOLOGIES (PTY) LTD:

Signature:	_____
Name:	_____
Designation:	_____
Date:	_____
Place:	_____

FOR AND ON BEHALF OF THE PARTNER:

Signature:	_____
Name:	_____
ID/Passport Number:	_____
Date:	_____
Place:	_____

WITNESS 1 (For Company):

Signature:	_____
Name:	_____
ID Number:	_____
Date:	_____

WITNESS 2 (For Partner):

Signature:	_____
Name:	_____
ID Number:	_____
Date:	_____

SCHEDULE A: REFERRAL REGISTRATION FORM

To be completed for each new referral

Field	Details
Date of Referral:	
Referral Partner Name:	
Partner Reference Number:	

Referred Party Details:

Field	Details
Company/Individual Name:	
Registration/ID Number:	
Contact Person:	
Designation:	
Email Address:	
Phone Number:	
Physical Address:	
Industry/Sector:	

Opportunity Details:

Field	Details
Products/Services of Interest:	
Estimated Contract Value:	
Expected Timeline:	
Current Systems Used:	
Key Pain Points/Requirements:	

Additional Notes:

Partner Signature: _____ **Date:** _____

FOR OFFICE USE ONLY:

Field	Details
Referral Number:	REF-
Received Date:	
Status:	Accepted Rejected
Reason (if rejected):	
Processed By:	
Date:	

SCHEDULE B: PARTNER BANKING DETAILS

To be completed and returned with signed Agreement

Field	Details
Account Holder Name:	
Bank Name:	
Branch Name:	
Branch Code:	
Account Number:	
Account Type:	Cheque Savings Transmission

I confirm that the above banking details are correct and authorize Masaphokati Technologies (Pty) Ltd to make commission payments to this account.

Signature:	_____
Name:	_____
Date:	_____

Document Reference: MT-RPA-2026-001

Version: 1.0

Effective Date: January 2026

Masaphokati Technologies (Pty) Ltd

Website: www.siyabusa.co.za

Email: partners@siyabusa.co.za

We Rule. We Govern. We Empower.